

21STCV24213 21STCV24213

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Case Number: 21STCV24213 Hearing Date: June 30, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: 06/30/2026

CASE NUMBER: 21STCV24213

CASE NAME: EVELYN M. LEON, et al.

vs FCA US, LLC, et al.

MOVING PARTY: Plaintiffs Evelyn M. Leon and Saulo

I. Leon

OPPOSING PARTY: Defendant FCA US, LLC

PROCEEDING: Motion for attorneys' fees

RULING SUMMARY: With the changes noted above, the Motion for Attorney Fees is granted. Plaintiffs are to serve on FCA within one week a proposed order adhering to the Court's calculations in this Ruling, meet and confer on any corrections FCA believes are needed to adhere to the Court's Ruling, and then submit a proposed Order to the Court within 14 days of the date of this Ruling.

Background

On June

30, 2021, Plaintiffs Evelyn M. Leon and Saulo I. Leon (collectively "Plaintiffs") filed their Complaint against Defendants FCA US, LLC ("FCA") and AutoNation Chrysler Dodge Jeep Ram ("AutoNation" and collectively "Defendants"), alleging seven causes of action for: (1) Violation

of Subdivision (d) of Civ. Code § 1793.2 against FCA; (2) Violation of Subdivision (b) of Civ. Code § 1793.2 against FCA; (3) Violation of Subdivision (a)(3) of Civ. Code § 1793.2 against FCA; (4) Breach of Express Written Warranty (Civ. Code §§ 1791.2(a), 1794) against FCA; (5) Breach of the Implied Warranty of Merchantability (Civ. Code §§ 1791.1, 1794, 1795.5) against FCA; (6) Fraud by Omission against FCA; and (7) Negligent Repair against AutoNation.

Plaintiffs

alleged that on or about August 23, 2014, they purchased a 2014 Jeep Cherokee with vehicle identification number 1C4PJLCS1EW245629 (the “Subject Vehicle”), manufactured and/or distributed by FCA, which came with various warranties; during the warranty period; the Subject Vehicle contained or developed defects, including in the electrical system; FCA had a duty to either promptly replace the Subject Vehicle or make restitution to Plaintiffs under the Song-Beverly Consumer Warranty Act (“Song-Beverly”); and FCA failed to do so. Plaintiffs allege that AutoNation owed a duty to Plaintiffs to use ordinary care and skill in storage, preparation and repair of the Subject Vehicle in accordance with industry standards and breached this duty.

On July

30, 2021, Defendants filed their Answer.

On

November 13, 2023, Plaintiffs filed a conditional settlement. On April 05, 2024, the parties filed a Joint Stipulation and Order to Dismiss with Prejudice and Retain Jurisdiction Pursuant to Code Civ. Proc. § 664.6, entered on April 08, 2024.

On

April 08, 2024, dismissal as to Defendants was entered. On December 16, 2025, Plaintiffs filed this Motion for Attorneys' Fees. On March 05, 2026, FCA filed its Opposition. On March 10, 2026, Plaintiffs filed their Reply.

LEGAL STANDARD – Attorneys' Fees

A prevailing party is entitled to recover costs, including attorneys' fees, as a matter of right. (Code Civ. Proc., §§ 1032(a)(4), 1032(b), 1033.5.)

In Song-Beverly cases, if the buyer of a consumer good who is damaged by a failure to comply with the Song-Beverly Act prevails in an

action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action. (Civ. Code § 1794(d).)

The fee setting inquiry in California ordinarily begins with the "lodestar" method, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. A computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys' fee award. The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided. (*Serrano v. Priest* (1977) 20 Cal.3d 25, 49.) Such an approach anchors the trial court's analysis to an objective determination of the value of the attorney's services, ensuring that the amount awarded is not arbitrary. (*Id.* at 48, n.23.) After the trial court has performed the lodestar calculations, it must consider whether the total award so calculated under all of the circumstances of the case is more than a reasonable amount and, if so, shall reduce the section 1717 award so that it is a reasonable figure. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095-96.)

The factors considered in determining the modification of the lodestar include the nature and difficulty of the litigation, the amount of money involved, the skill required and employed to handle the case, the attention given, the success or failure, and other circumstances in the case. (*EnPalm, LLC v. Teitler Family Trust* (2008) 162 Cal. App. 4th 770, 774.) A negative modifier was appropriate when duplicative work had been performed. (*Thayer v. Wells Fargo Bank, N.A.* (2001) 92 Cal.App.4th 819.) "In making its calculation, the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees [citation], the difficulty or complexity of the litigation to which that skill was applied [citation], and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases. [Citation.]" (*569 East County Boulevard, LLC v. Backcountry Against the Dump, Inc.* (2016) 6 Cal.App.5th 426, 437.)

Plaintiffs' Request for Judicial Notice is denied. While the requests for judicial notice appear to invoke to Evidence Code section 452(d) (records of a court of this state, the United States, and any of the state of the United States), Plaintiffs have not attached those orders to the Request. "A party requesting judicial notice of material under Evidence Code section 452 or 453 must provide the court and each party with a copy of the material." (Cal. Rules of Court, Rule 5.115.)

OBJECTIONS

A. FCA's

Objections to the Declaration of Payam Shahian ("Shahian")

Objection No. 1 [Page 1,
Lines 12-16, ¶ 3] – overruled.

Objection No. 2 [Page 1,
Lines 17-22 ¶ 4] – overruled.

Objection No. 3 [Page 2,
Lines 5-6, ¶ 6] – overruled.

Objection No. 4 [Page 2,
Lines 8-10, ¶ 7] – overruled.

Objection No. 5 [Page 2,
Lines 11-16, ¶ 8] – overruled.

Objection No. 6 [Page 2,
Lines 17-19, ¶ 9] – overruled.

Objection No. 7 [Page 2,
Lines 20-21, ¶ 10] – overruled.

Objection No. 8 [Page 2,
Lines 22-27, ¶ 11] – sustained.

Objection No. 9 [Page 3,
Lines 1-7, ¶ 12] – sustained.

Objection No. 10 [Page 3,
Lines 8-16, ¶ 13] – sustained.

Objection No. 11 [Page 3,
Line 17- Page 4, Line 20, ¶ 14] – sustained.

Objection No. 12 [Page 4,
Line 21 – Page 5, Line 22, ¶ 15] – sustained.

Objection No. 13 [Page 5,
Line 17- Page 15, Line 19, ¶ 16 & 16a-16s] – overruled.

Objection No. 14 [Page 15,
Lines 21-25, ¶ 17] – overruled.

Objection No. 15 [Page 15,
Line 26- Page 16, Line 2 ¶ 18] – overruled.

Objection No. 16 [Page 16,
Lines 3-5, ¶ 19] – overruled.

Objection No. 17 [Page 16,
Lines 13-22, ¶ 21] – overruled.

Objection No. 18 [Page 17,
Lines 1-18, ¶ 22A] – overruled.

Objection No. 19 [Page 17,
Lines 19-21, ¶ 23] – overruled.

Objection No. 20 [Page 17,
Line 22- Page 25, Line 27, ¶ 23A-23VV] – overruled.

Objection No. 21 [Page 24,
Line 1- Page 26, Line 14, ¶ 24] – overruled.

Objection No. 22 [Page 26,
Lines 16-22, ¶ 25] – overruled.

Objection No. 23 [Page 26,

Lines 23-26, ¶ 26] – overruled.

B. FCA's

Objections to the Declaration of Dhara Chandy ("Chandy")

Objection No. 1 [Page 1,
Lines 13-20, ¶ 3] – overruled.

Objection No. 2 [Page 1,
Line 21- Page 2, Line 2, ¶ 4] – overruled.

Objection No. 3 [Page 2,
Lines 1-2, ¶ 5] – overruled.

Objection No. 4 [Page 5,
Lines 16-26] – overruled.

C. FCA's

Objection to Judicial Notice

See above.

D. Plaintiffs'

Objections to the Declaration of Jordan A. Willette ("Willette")

Objection No. 1 [Willette
Decl. ¶ 2] – overruled.

Objection No. 2 [Willette
Decl. ¶ 3] – overruled.

Objection No. 3 [Willette
Decl. ¶ 4] – overruled.

Objection No. 4 [Willette
Decl. ¶ 5] – overruled.

Objection No. 5 [Willette
Decl. ¶ 6] – sustained.

Objection No. 6 [Willette

Decl. ¶ 7] – overruled.

Objection No. 7 [Willette

Decl. ¶ 8] – overruled.

Objection No. 8 [Willette

Decl. ¶ 9] – overruled.

DISCUSSION

Plaintiffs seek \$67,729.64

(\$44,195.00 [total attorneys' fees] + \$16,518.25 [1.35 multiplier enhancement on the attorney fees] + \$3,016.39 [costs and expenses] + \$4,000.00 [fees on this motion]) in fees and costs. They argue that (1) counsels' hourly rates, which range from \$195 to \$610, are reasonable; (2) the number of hours requested, 96.1 hours, is reasonable for over four years of litigation; (3) a multiplier enhancement of 1.35 or a 35 percent enhancement is reasonable because an excellent outcome was obtained and the litigation was conducted on a contingency basis. Regarding costs, Plaintiffs highlight that FCA agreed to pay Plaintiffs' costs through the settlement agreement. (See Decl. Chandy at ¶ 44, Exh. 3.)

The rates of Plaintiffs counsels

are as follows:

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Muky Dai (attorney with approx. 15 yrs
experience) – \$495.00/hour;

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Nino Sanaia (attorney with approx. 11 yrs
experience) – \$385.00/hour;

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Rebecca Neubauer (attorney with approx. 12 yrs
experience) – \$435.00/hour;

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Tionna Carvalho (partner with approx. 12 yrs

experience) – \$450.00/hour;

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Jaleceia White (attorney with approx. 5 yrs
experience) – \$350.00/hour;

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Sanam Vaziri (attorney with approx. 31 yrs of
experience)– \$610.00/hour;

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James Carroll (attorney with approx. 20 yrs
experience) – \$595.00/hour;

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Steven Whang (attorney with approx. 12 yrs experience)
– \$475.00/hour;

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Scott Friedman (attorney with approx. 18 yrs
experience) – \$545.00/hour;

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Catherine Rubald (attorney with approx. 22 yrs
experience) – \$595.00/hour;

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Blake Kong (attorney with approx. 23 yrs
experience) – \$595.00/hour;

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Matthew Pardo (attorney with approx. 9 yrs
experience) – \$435.00/hour;

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Monica Patrikus (attorney with approx. 13 yrs
experience) – \$455.00/hour;

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Caitlin Scott (attorney with approx. 11 yrs

experience) – \$450.00/hour;

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Eve Canton (Law Clerk) – \$295.00/hour;

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Ian McCallister (attorney with approx. 28 yrs
experience) – \$595.00/hour;

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Albert Mendoza (attorney with approx. 8 yrs
experience) – \$390.00/hour;

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Brittney Ornelas (non-attorney legal staff) – \$195.00/hour;
and

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Dhara Chandy (attorney with approx. 1 year
experience; time as provisionally licensed attorney not reported) – \$375.00/hour.

(Decl. Shahian at ¶¶ 16 & Exh.

1.)

FCA argues that Plaintiff has the burden to show that fees incurred were reasonably necessary to the conduct of litigation and are reasonable in amount, and that Plaintiff has failed to meet that burden. FCA highlights that liability was never established due to the 998 offer, that Plaintiffs' counsels' hours are inflated as the motions in this case were routine and templated, that there is no evidence that a client would pay this amount for services so counsels' rates are untethered to market reality, that counsels' support for their fees are self-serving declarations, and that no special knowledge or skill was required to prosecute this case. FCA requests that (1) the partner rates should be reduced to \$400.00 per hour or, alternatively, the Court should apply a blended rate of no more than \$350.00 overall; (2) law clerk rates should be reduced to \$50.00 per hour to confirm the rate to that provided by Assistant Supervising Judge Watkins in her rulings; (3) reduction of hours as provided in the Declaration of Jordan A. Willette ("Willette"). FCA further argues that block billing should be rejected or reduced, fees not actually occurred are not recoverable, vague and

unsupported costs should be taxed, and the loadstar multiplier should be rejected.

Plaintiffs' Reply argues that FCA's declarations are an improper way to circumvent the page limits for briefs and FCA's objections are conclusory. Plaintiffs reiterate the reasonableness of their counsels' rates, hours, and costs.

The correct measure for attorneys' fees is the market value of the services, and "[t]his standard applies regardless of whether the attorneys claiming fees charge nothing for their services, charge at below-market or discounted rates, represent the client on a straight contingent fee basis, or are in-house counsel." (Nemecek & Cole v. Horn (2012) 208 Cal.App.4th 641, 651.) "Absent an arbitrary ruling, case law gives trial judges great discretion in using their knowledge and experience to assess the 'value of professional services rendered in his [or her] court,' " even without the necessity of expert testimony. [Citations.]" (Marshall v. Webster (2020) 54 Cal.App.5th 275, 287 [internal citations omitted]; see also Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132 ["The 'experienced trial judge is the best judge of the value of professional services rendered in his court, and while his judgment is of course subject to review, it will not be disturbed unless the appellate court is convinced that it is clearly wrong.' "].)

The Court has reviewed the evidence offered by both parties. The Court is also aware of the prolific use of templates within Song-Beverly cases.

Applying its knowledge and experience, the Court finds the attorney rates charged to be reasonable subject to the following changes:

· A

lodestar multiplier will not be applied because, though this case was taken on a contingency basis, it is neither novel nor complex for a Song-Beverly case;

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Eve Canton (Law Clerk)'s rate is reduced from \$295.00/hour to \$200/hour;

·

Dhara Chandy (attorney with approximately one year

experience – her time as a provisionally licensed attorney is reduced from \$375.00/hour to \$300.00/hour as the current requested rate is nearly the same rate as Plaintiffs' counsel Jalecia White, an attorney with five years' experience;

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The time spent on the draft Complaint and supporting documents on June 29, 2021 of 3.7 hours is reduced to 2.7 hours;

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The time on November 4, 2021 to draft discovery responses of 4.2 hours is reduced to 3.2 hours;

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The time on October 24, 2022 to prepare for and defend the deposition of Plaintiff Evelyn Leon Remotely is reduced to seven hours as no explanation is given for the difference in time spent on each Plaintiff's deposition, both of which appear to have occurred on the same date;

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Anticipated costs for this motion are disallowed.

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There appears to be a substantially similar entry in the costs section (see Decl. Shahian at Exh. 1 at June 03, 2025 [two payments to First Legal for consent to electronic service], the Court reduces the total amount of \$30.20 to \$15.10.

Conclusion;

With the changes noted above, the Motion for Attorney Fees is granted. Plaintiffs are to serve on FCA within one week a proposed order adhering to the Court's calculations in this Ruling, meet and confer on any corrections FCA believes are needed to adhere to the Court's Ruling, and then submit a proposed Order to the Court within 14 days of the date of this Ruling.

Date: 06/30/2026 _____;

William E. Weinberger

Judge, Los Angeles Superior Court